

BRAND DEAL AGREEMENT

This Agreement (the “Agreement”) is made by and between Influenergy LLC (“Company”), and the individual who has agreed to this Agreement pursuant to the Ad Brief (“Creator”).

1. **Engagement Details.** Creator agrees to work with the designated Brand, as specified in the Ad Brief, on the Deliverables outlined therein. The Ad Brief (accessible via the designated webpage) shall include, but are not limited to, Deliverables, Price, Revision Requests, Reshoot Requirements, Net Payment Timeline, Usage Rights, and Exclusivity. Creator agrees to abide by these terms to the extent they appear in the Ad Brief.

2. **Intellectual Property & Content Ownership.** The Brand shall own all right, title and interest, (together, the “Intellectual Property Rights”) in and to the content produced in this Agreement. This Agreement is not a sale and does not convey to the Company any rights of ownership in or related to the Brand's content, or the Intellectual Property Rights owned by the Brand. The Brand's name, logo, profile, and videos associated with the Agreement are owned by the Brand, and this agreement gives the Company no right or license granted to use them (other than what is expressly permitted in this Agreement). The Company may publicize and advertise that (i) Creator has worked with Company in Company's marketing materials and that (ii) Company may use the content in any Company marketing materials. Creator expressly agrees to such usage and publication. Creator also grants a perpetual, royalty-free license to Company to use such content in Company's own marketing materials.

3. **Usage Rights.** To the extent the Ad Brief specify authorized usage rights, Creator grants the Brand a license to use the content in accordance with such terms. Creator agrees to provide Brand access to underlying content assets as required by the Ad Brief.

4. **Payment Terms.** Company shall remit payment to Creator only to the extent that Company has received payment from the Brand. Payment shall be made per the schedule specified in the Ad Brief. Company shall not be liable for any unpaid amounts due to non-payment by the Brand. Creator acknowledges that Company is acting as an intermediary and assumes no liability for late or missing payments from the Brand. Company may deduct any payment processing fees and, in its sole discretion, a platform usage fee, from the compensation due to Creator by the Brand.

5. **Term and Termination.** This Agreement shall continue until either party terminates it by providing five (5) days' written notice to the other party or until the completion of the obligations, whichever occurs first. Company reserves the right to terminate this Agreement at its sole discretion, with or without cause, upon written notice

to the Creator, effective immediately or as specified in the notice. Provisions of this Agreement that, by their nature, are intended to survive termination shall remain in effect.

6. **Independent Contractor.** Creator will be an independent contractor to the Company. Creator will not be subject to direction or control by the Company in performing this Agreement. Creator is responsible for paying expenses related to furnishing the completed Project under this Agreement. Creator will not be eligible for any employee benefits, and the Company will not make any tax withholdings on Creator's behalf. Creator agrees to pay all self-employment and other taxes relating to this Agreement.

7. **Indemnification.** Creators warrant that their content is original, legally compliant, and does not infringe upon any third-party intellectual property rights. Creator shall indemnify and hold harmless the Company and Brand solely to the extent that (a) the Creator knowingly breaches this warranty or acts with gross negligence, and (b) the resulting damages are directly caused by such breach or conduct. Notwithstanding the foregoing, Creator's total liability under this indemnity shall be capped at the amount of compensation payable to Creator as set forth in the applicable Ad Brief.

8. **Limitation of Liability.** To the maximum extent permitted by law, Company's total liability under this Agreement shall not exceed the total amount paid to Creator under this Agreement. In no event shall Company be liable for indirect, incidental, consequential, or special damages arising out of or related to this Agreement.

9. **Representation & Warranties.** Company represents and warrants that it has full right, power, and authority to enter into this Agreement and to perform all obligations hereunder. Creator represents and warrants that: (a) All content will comply with applicable laws, platform policies, and advertising regulations; (b) Creator has full rights to grant any necessary licenses; (c) Content will not infringe any third-party rights.

10. **Confidentiality.** Creator agrees that any non-public information provided by Social Curreant or the Brand, including but not limited to business strategies, marketing plans, financial information, and any other proprietary or confidential materials, shall remain strictly confidential. Creator shall not disclose, share, or use such information for any purpose other than fulfilling obligations under this Agreement, unless required by law. This obligation shall survive termination of the Agreement.

11. **No Waiver.** No failure by either party to exercise any right or remedy hereunder shall be deemed a waiver of such right or remedy, or waiver of such right or remedy with respect to a future occurrence, or a waiver of any other right or remedy hereunder, unless otherwise expressly stated in writing.

12. **Governing Law & Choice of Forum.** This Agreement will be governed and construed under the laws of the State of California without regard to the conflicts of law provisions thereof. The parties hereby submit to the jurisdiction of the state and federal courts in the State of California to resolve any dispute arising out of or resulting from this Agreement. In addition, any dispute, controversy, or claim arising out of or relating to this Agreement, or the breach, termination, or invalidity thereof, shall be settled by arbitration in accordance with the rules of the American Arbitration Association. The arbitration shall take place in California, and the decision of the arbitrator(s) shall be binding and final.

13. **Force Majure.** In no event shall the Company be responsible or liable for any failure or delay in the performance of its obligations hereunder arising out of or caused by, directly or indirectly, forces beyond its control, including, without limitation, strikes, work stoppages, accidents, acts of war or terrorism, civil or military disturbances, nuclear or natural catastrophes or acts of God, and interruptions, loss or malfunctions of utilities, communications or computer (software and hardware) services; it being understood that the Company shall use reasonable efforts which are consistent with accepted practices in the banking industry to resume performance as soon as practicable under the circumstances.

14. **Complete Agreement/Amendment/Severability.** This Agreement shall be binding upon and inure to the benefit of the parties hereto and their respective successors and permitted assigns. This Agreement expresses the entire understanding of the parties hereto with respect to the subject matter hereof and replaces any and all prior agreements, negotiations, and understandings, written or oral, relating to the subject matter hereof. This Agreement shall not be modified or amended except in writing and signed by each party. If any provision of this Agreement is held to be illegal or unenforceable by a court or other tribunal of competent jurisdiction, such provision shall be fully severable from this Agreement, and the remaining provisions of this Agreement shall remain in full force and effect and shall not be affected by the illegal or unenforceable provision or by its severance from this Agreement to the fullest extent possible.

15. **Notices.** All notices hereunder shall be in writing and shall be deemed given as follows: if by email, on the date that such email was sent; if by personal delivery, on the date of such delivery (or addressee's refusal of delivery); if by first class registered or certified mail (postage prepaid, return receipt requested), on the date that is three (3) business days following the mailing date; or if by U.S. Express mail, Federal Express, or another nationally recognized overnight courier service, on the date that is one (1) business day following the mailing date. Notices shall be addressed to the appropriate party at the address where such party actually receives written notice.

16. **Integration.** This Agreement, along with the Ad Brief, supersedes all prior agreements and understandings (whether written or oral) between the Company and the

Creator with respect to the subject matter hereof. To the extent terms in this Agreement differ from the Ad Brief, the Ad Brief shall govern.